

2026:PHHC:086855



105

**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-27039-2026
Decided On: 04.06.2026**

JASPAL SINGH @ JASS**....PETITIONER(S)****VERSUS****STATE OF PUNJAB****....RESPONDENT(S)****CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL**

Present: Mr. B.S.Bhalla, Advocate for the petitioner.

Mr. Rajiv Verma, Addl. AG Punjab with
Mr. Gursewak Singh, LR/ASI/557/TT
Mob No. 9877250263

SANDEEP MOUDGIL, J (ORAL)**1. Relief sought**

The jurisdiction of this Court has been invoked under Section 482 BNSS for grant of anticipatory bail to the petitioner in FIR No.218 dated 17.08.2025 registered under sections 21-c,25,29 NDPS Act, 1985 at Police Station ANTF (Wing) SAS Nagar, Mohali.

2. Prosecution story setup in the present case as per the version in the FIR as under:-

“Copy of Rukka "To the SHO, Police Station Anti-Narcotic Task Force Sohana, District S.A.S. Nagar. Jai Hind. Today, I, the Sub-Inspector (SI), was present at the office of the Anti-Narcotic Task Force, Border Range, Amritsar, along

with ASI Gursewak Singh 557/TT, ASI Lakhwinder Singh 831/TT, ASI Shamsher Singh 3216/ASR-City, ASI Jagrup Singh 3869/ASR-City, SC Gagandeep Singh 7/419, and C-11 Khuskaran Singh 4/632. While traveling in government vehicle number PB-65-BK-3702 in the area of Tarn Taran for the purpose of searching for heroin smugglers and bad elements, at around 5:00 PM, ASI Gursewak Singh 557/TT informed me via mobile phone that a special informant shared information that Kulwinder Singh alias Billa son of Sucha Singh, resident of Vering Suba Singh, Police Station Goindwal, District Tarn Taran, and Shamsher Singh alias Shera, son of Nishan Singh, resident of Phallian di Patti, Khadoor Sahib, Police Station Goindwal Sahib, District Tarn Taran, are jointly operating a large-scale heroin smuggling business. They have recently brought in a large consignment of heroin. Both of them currently traveling in a white Verna car, registration number PB-13- BG-9240, via Khadoor Sahib and Tarn Taran Road toward Adda Bania Mandala. If a checkpoint (Naka) is set up without delay, they can be apprehended. Their mutual network is very fast. If they are caught immediately, a heavy quantity of heroin can be recovered. Believing the information to be true and solid, ASI Gursewak Singh, along with his companions, intercepted them along with the Verna car near Adda Bania Mandala as per the informant's description. Reach the spot for further action. As the information is solid, there is high hope of recovery as per the tip-off. Regarding this, a separate report under Section 42 of the NDPS Act is being prepared and sent through HC Jaskaranpal Singh 950/TT to the senior officers of ANTF/BR/ASR. I, the SI, along with Constable Vishal Kumar 3365/TSS, carrying a laptop, printer, and accessories, reached the spot in government vehicle number PB-65-AS-7058 (Bolero). There, ASI Gursewak Singh 557/TT, along with fellow employees, was found having cordoned off the intercepted white Verna car

number PB-13-BG-9240. I, the SI, asked the apprehended persons for their names and addresses one by one. The person sitting in the conductor's seat identified himself as Kulwinder Singh alias Billa, son of Sucha Singh, resident of village Vering Sabba Singh, Police Station Goindwal, District Tarn Taran; and the person in the driver's seat identified himself as Shamsher Singh alias Shera, son of Nishan Singh, resident of Phallian di Patti, Khadoor Sahib, Police Station Goindwal Sahib, District Tarn Taran. I, the SI, while disclosing my identity, told them, 'I am SI Raj Kumar, number 1154/ASR-City, currently posted at ANTF/BR/ASR. I am in uniform and wearing my nameplate. I have received information that you possess a narcotic substance, heroin. Therefore, you and your vehicle are to be searched. However, you have the legal right to have yourself and your vehicle searched in the presence of a Gazetted Officer or a Magistrate. I can make arrangements for this, and I can call a Gazetted Officer or Magistrate to the spot or present you before them.' Upon this, the aforementioned persons said in Punjabi one by one that I should call a Gazetted Officer to the spot. Complying with Section 50 of the NDPS Act, I prepared separate non- consent memo. Keeping in view their wish to be searched in the presence of a Gazetted Officer, at around 7:00 PM, a request was made via mobile phone to Shri Ravisher Singh PPS, DSP-ANTF/BR/ASR to reach the spot. Around 7:30 PM, Shri Ravisher Singh PPS, DSP-ANTF/BR/ASR reached the spot along with his staff. I, the SI, again apprised him of all the circumstances. After this, Shri Ravisher Singh PPS, DSP-ANTF/BR/ASR, while identifying himself the apprehended persons Kulwinder Singh alias Billa and Shamsher Singh alias Shera, said, 'I am Ravisher Singh PPS, posted at DSP-ANTF/BR/ASR. I am a Gazetted Officer appointed by the Punjab Government. I am in uniform and wearing my nameplate. I have received information that you possess a

narcotic substance, heroin. Therefore, I have been called to the spot for the search of you and your vehicle. You and your vehicle are to be searched. However, you have the legal right to have yourself and your vehicle searched in the presence of some other Gazetted Officer or Magistrate. I can arrange for that, call another Gazetted Officer or Magistrate to the spot, or present you before them.' Upon this, Kulwinder Singh alias Billa and Shamsher Singh alias Shera stated in Punjabi one by one, 'We have full faith in you. We want to be searched in your presence.' Following this, Shri Ravisher Singh PPS, DSP- ANTF/BR/ASR, in compliance with Section 50 of the NDPS Act, prepared separate consent memos. Then, as per the instructions of the DSP, I, the SI, tried to include public witnesses from the spot in the police party. However, due to the fear of creating enmity, everyone expressed their compulsion and was not ready to join the police party. Thereafter, I, the SI, offered the search of my own person to Kulwinder Singh alias Billa and Shamsher Singh alias Shera. They searched me, but no objectionable or illegal item was found. A separate memo was prepared by me regarding this. Then, as per the instructions of the DSP, I searched Kulwinder Singh alias Billa and Shamsher Singh alias Shera one by one. From the lower worn by Kulwinder Singh Billa, one mobile phone including a SIM card and 400 Rupees in Indian currency were recovered. Upon searching Shamsher Singh alias Shera, one mobile phone including a SIM card and 300 Rupees in Indian currency were recovered from the pocket of the lower worn by him. I, the SI, took possession of these items through separate memos. Then, on the instructions of the DSP and in the presence of fellow employees, I searched the white Verna car PB-13-BG-9240 according to the rules. From the dashboard of the car, heroin wrapped in a transparent plastic pouch inside red and white cloth bag recovered. It was tested with a drug detection kit, and during testing, the substance in the pouch

was found to be heroin. On weighing it on an electronic scale, the total weight was 400 grams. The recovered heroin was placed in a plastic box and a parcel was prepared with cloth. I, the SI, sealed the parcel with my seal 'RK', and the DSP sealed the 400-gram heroin parcel with his seal 'RSS'. A separate sample seal was prepared. I handed over my seal after use to ASI Gursewak Singh 557/TT, and the DSP kept his seal with himself after use. Constable Vishal Kumar, number 3365/TSS, who was part of the police party, conducted videography on my mobile phone as per the rules. Then, I took the 400-gram sealed heroin parcel with seals RK/RSS (total 2/2 seals) along with the sample seal into police possession as evidence through a separate memo. A separate recovery memo for the heroin was prepared. The car, registration number PB-13-BG-9240 white color, was also taken into police possession through a separate memo. The signatures of the accused and witnesses were obtained on the memos. Kulwinder Singh alias Billa and Shamsher Singh alias Shera, by keeping 400 grams of heroin in their possession, have committed an offense under Sections 21-C/25/29-61-85 of the NDPS Act. Therefore, after typing and printing a computerized Rukka against them, a copy of the Rukka is being sent to my email ID bhikanraj1971@gmail.com and email the IDS of psstfsasnagar@gmail.com the ANTF (SAS Nagar) and team ps-stf.police@punjabpolice.gov.in for the registration of an FIR. After registering the FIR, the case number should be informed. Special reports should be issued and sent to the Area Magistrate and higher officers. Information should be given to the control room. The original Rukka is being sent by hand through C-II Khuskaran Singh 4/632 to Police Station ANTF (SAS Nagar). I, the SI, along with my companions, am busy with the investigation at the spot. Today, near Adda Bania Mandala at 10:00 PM. Signed/- Raj Kumar SI, ANTF/Border Range, Amritsar, Date: 17-08-25."

3. **Contentions**

On behalf of the petitioner

Learned counsel for the petitioner contends that the petitioner has been falsely roped in the instant FIR only on the basis of disclosure statement of co accused persons namely Kulwinder Singh and Shamsher Singh and no recovery has been effected from the conscious possession of the petitioner. It is further contended that no shadow of evidence is available to connect the petitioner with the offence in question.

On behalf of the State

On the other hand, state counsel who is present in court accepts notice on behalf of respondent-state and prays for dismissal of the instant petition by submitting that the contraband involved is 400 grams of heroin recovered from both the co-accused and as per their disclosure statement, the contraband in question was supplied by the petitioner hence the instant petition is liable to be dismissed.

Heard.

4. **Analysis**

Before delving into the merits of the case, it is apposite to discuss section 29 of the NDPS Act which is reproduced herein below:-

29. Punishment for abetment and criminal conspiracy- (1) Whoever abets, or is a party to a criminal conspiracy to commit an offence punishable under this Chapter, shall, whether such offence be or be not committed in consequence of such abetment or in pursuance of such criminal conspiracy, and notwithstanding anything contained in [section 116](#) of the Indian Penal Code (45 of 1860), be punishable with the punishment provided for the offence.

(2) A person abets, or is a party to a criminal conspiracy to commit, an offence, within the meaning of this section, who, in India abets or is a party to the criminal conspiracy to the commission of any act in a place without and beyond India which-

(a) would constitute an offence if committed within India;

or

(b) under the laws of such place, is an offence relating to narcotic drugs or psychotropic substances having all the legal conditions required to constitute it such an offence the same as or analogous to the legal conditions required to constitute it an offence punishable under this Chapter, if committed within India."

Section 29 of the NDPS Act, thus addresses the issues of abetment and criminal conspiracy in relation to narcotic offenses. This section is significant because it extends liability not only to those who directly engage in drug-related activities but also to those who assist or conspire in such activities.

With deep concern, this court has time and again pointed out the clandestine smuggling of narcotic drugs and psychotropic substances in the State of Punjab which have led to drug addiction among sizeable section of the public, particularly adolescents and students. This menace has assumed serious and alarming proportion in the recent times and such rising concern of drug peddling needs an efficacious solution.

To effectively address the drug menace caused by rapid drug smuggling, the concerned State Government should develop integrated policies that addresses the root cause of drug abuse, incorporating health, education and social welfare sectors. At this stage, it would be apposite to understand Article 47 of the Constitution of India which is read as under:-

“47. Duty of the State to raise the level of nutrition and the standard of living and to improve public health-

The State shall regard the raising of the level of nutrition and the standard of living of its people and the improvement of public health as among its primary duties and, in particular, the State shall endeavour to bring about prohibition of the consumption except for medicinal purposes of intoxicating drinks and of drugs which are injurious to health”.

A glimpse at Article 47 of the Constitution of India(One of the Directive based on Socialistic Principles) makes it ample clear that it is for the State to look into the improvement of public health and the prohibition of harmful substance.

Drug addiction is a multifaceted affliction that transcends the boundaries of mere criminality striking at the heart of our society's social and moral fabric. At its core, addiction is not simply a breach of law but a manifestation of deeper socio-economic imbalances, psychological vulnerabilities, and systemic neglect. The judicial approach must therefore extend beyond traditional punitive measures to embrace a framework that prioritizes rehabilitation, education, and community reintegration

In recognizing that the roots of addiction often lie in a complex interplay of economic disenfranchisement, social isolation, and mental health challenges, it becomes essential for the legal system to adapt its response accordingly. The law, while enforcing accountability, must also uphold the principle of human dignity .by facilitating avenues for recovery and transformation. This approach is anchored in the understanding that true justice

does not reside solely in punishment but in the restoration of the individual and the community at large.

Coming to the instant petition, taking into consideration the expanding network of drug peddlers and facts of the case wherein the total quantity involved is 400 grams of heroin and the petitioner being allegedly part of the same group of co-accused does not deserve the concession of bail.

Moreover, while addressing the objectives of the NDPS Act, the Hon'ble Supreme Court in the case of *Durand Didier v Chief Secretary, Union Territory Of Goa* (1990) 1 SCC 95 emphasized that the rampant issue of clandestine smuggling and illegal trafficking of drugs and substances has led to widespread drug addiction, particularly among adolescents and youth. This has had a harmful and devastating impact on society.

Further, an additional aspect that must be considered by this court is the frequent practice where individuals implicated under Section 29 of the NDPS Act assert that they were neither present at the scene nor had any contraband in their conscious possession. Taking advantage of this defense, many such accused persons are granted bail. However, this practice needs to be addressed, as individuals targeted under Section 29 are often the primary masterminds behind the drug trafficking networks, orchestrating operations from a distance while using others, typically those found in direct possession of the drugs, as scapegoats. Consequently, the court is of the firm opinion that in such cases, these individuals should be held equally accountable and should not be afforded any leniency.

5. **Relief**

In the light of above stated facts and the spectrum of law discussed along with the prevailing conditions of high rise in drug menace, the court is of the considered view that the petitioner does not deserve the concession of the anticipatory bail. Hence, the instant petition stands dismissed being devoid of merits.

However, it is made clear that the observations made herein above shall have no bearing in the mind of the trial court while adjudicating the matter in accordance with law.

Ordered accordingly.

(SANDEEP MOUDGIL)
JUDGE

04.06.2026
NainaRajput

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>